

106	JP Morgan Chase Bank v. Robertson, 2024-01450700	MOTON TO SET ASIDE/VACATE DISMISSAL AND ENTER JUDGMENT – GRANTED Plaintiff JPMorgan Chase Bank, N.A. (“Plaintiff”) moves for an order vacating the July 22, 2025 dismissal of this action and entering judgment under the terms of the stipulated settlement of this case. Code of Civil Procedure section 664.6 states: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” The parties entered into a stipulated settlement on May 14, 2025 and requested that the Court retain jurisdiction to enforce the terms of the agreement. (Declaration of Brian Langedyk, Exhibit A.) Under the agreement, defendant Christopher L. Robertson (“Defendant”) agreed to pay a one-time payment of \$613.03 by May 23, 2025 followed by a minimum of \$860.00 on or before the 23rd day of each and every month commencing in June 23, 2025 until Defendant has paid the entire \$51,353.03 owed to Plaintiff. The agreement provides: “If Defendant fails to make full and timely payment of any installment or if any payment is reversed, Defendant will not be entitled to any deduction, the full remaining balance will be due, and Plaintiff shall be entitled to enter judgment of the Judgment Amount, less credit for payments received by Plaintiff.” The agreement further provides: “Upon a default by Defendant in any payment due to Plaintiff under the terms of this Stipulation, Plaintiff shall apply to the court to have the dismissal without prejudice (if applicable) set aside and vacated and to have judgment entered for the Judgment Amount less credit for payment(s) received by Plaintiff.” Defendant has defaulted on the payment arrangement under the agreement and has paid a total of \$0.00.
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		(Langedyk Decl. ¶¶ 5-6.) The agreement was signed by both parties and filed on June 19, 2025. (ROA 24.) The action was ordered dismissed on July 22, 2025 pursuant to the parties’ agreement and the Court retained jurisdiction under section 664.6. (ROA 32.) There is no indication that the agreement is not valid or binding. The Court finds that Plaintiff has established that the parties entered into a valid and binding settlement agreement and Defendant is in breach of its terms. As a result of that breach, Plaintiff is entitled to have the prior dismissal of this action set aside and judgment entered in its favor. In light of the above, the Motion is GRANTED. The July 22, 2025 dismissal is ORDERED set aside and judgment shall be entered in favor of Plaintiff and against Defendant in the amount of \$51,353.03. Moving party to give notice.
107	Laborin vs. Park, 2024-01422253	MOTION TO BIFURCATE – DENIED Defendant Samuel Park (“Defendant”) moves pursuant to Code of Civil Procedure section 598 and 1048(b) to bifurcate the liability and damages phases of trial. Code of Civil Procedure section 598 provides that the court may order certain issues tried before others “when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby. . . .” (Code Civ. Proc., § 598.) Code of Civil Procedure section 1048(b) states: “[t]he court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action . . . or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Code Civ. Proc., § 1048, subd. (b).) Thus, the Court must analyze the following when determining whether to bifurcate issues: (1) convenience of the witnesses, (2) the ends of justice, (3) the economy